JUSTICE GORSUCH delivered the opinion of the Court.

This case concerns whether the Religious Land Use and Institutionalized Persons Act of 2000 permits plaintiffs to sue nonconsenting state employees in their private capacities for damages.

I

Today, Congress offers financial support to all 50 States and many other entities. Much of that support comes with strings attached. So, for example, Congress has conditioned receipt of federal highway funds on a State's agreement to maintain laws setting a minimum drinking age of 21. See *South Dakota* v. *Dole*, 483 U. S. 203 (1987). Likewise, Congress has conditioned federal Medicaid funds on a State's willingness to administer its healthcare programs consistent with various rules. See *Medina* v. *Planned Parenthood South Atlantic*, 606 U. S. 357, 362–364 (2025). In each of these contexts and many others, the penalty for noncompliance is straightforward: Congress may "terminate funds" if a recipient fails to abide by the conditions associated with its grants. *Id.*, at 365–366 (internal quotation marks omitted).

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The statute at issue before us, the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA), works similarly. As relevant here, RLUIPA imposes various conditions on federal funds distributed to state prison systems like the Louisiana Department of Corrections (LDOC). One condition requires prison systems to refrain from imposing "substantial burden[s] on the religious exercise[s]" of state prisoners outside exceptional circumstances. See 42 U. S. C. §§2000cc–1(a), (b)(1); see also Tr. of Oral Arg. 60. If a prison system fails to comply with that condition, Congress may cut off its funding.

But when enacting RLUIPA, Congress did something more: It included another, distinct remedy as part of the

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León, and *Kaitlyn E. Klass*; and for the National Sheriffs' Association by *Gregory C. Champagne* and *Maurice E. Bostick*.

bargain. As a condition of funding, Congress called on state prison systems to agree to answer suits by private plaintiffs alleging substantial burdens on their religious exercises. Specifically, the law asked those systems to consent to suit by any injured party "assert[ing] a violation of" RLUIPA and seeking "appropriate relief." § 2000cc–2(a).

This case concerns that provision. Damon Landor is a Rastafarian whose religious convictions require him to leave his hair uncut. In 2020, after a conviction in Louisiana state court, Mr. Landor spent a few months in custody. Near the end of his sentence, as officers transferred him from one facility to another, Mr. Landor grew concerned that the new facility's intake officers might cut his hair pursuant to standard LDOC grooming policies. To avoid that possibility, he provided the officers with a copy of *Ware* v. *LDOC*, 866 F. 3d 263 (CA5 2017), which held that RLUIPA generally bars prisons from cutting Rastafarians' hair. See *id.*, at 266, 274. But, Mr. Landor says, the LDOC officers in the new facility responded by throwing his copy of *Ware* in the trash and proceeding to shave his head, causing him to violate his religious beliefs.

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After that transpired, Mr. Landor brought this lawsuit under RLUIPA seeking money damages. He sued not only LDOC, but also some of the prison system's individual officers in their personal capacities. The officers responded by asking the district court to dismiss Mr. Landor's complaint. As they saw it, their employer, LDOC, may have struck a bargain with the federal government to answer certain private suits by prisoners like Mr. Landor. But, they argued, they were not parties to that or any other agreement to answer private suits under RLUIPA. Accordingly, they continued, Mr. Landor had no federal cause of action against them. Ultimately, the court dismissed Mr. Landor's RLUIPA claims against both LDOC and the officers.

On appeal to the Fifth Circuit, Mr. Landor did not challenge the district court's dismissal of his RLUIPA claim

against LDOC. Instead, he focused on his claim against the individual officers, asking the Court of Appeals to revive only that portion of his suit. The Fifth Circuit declined to do so. It did not question that RLUIPA may permit certain claims against funding recipients like LDOC. But, the court held, RLUIPA "does not permit suits against officers in their individual capacities." 82 F. 4th 337, 341 (2023). We granted Mr. Landor's petition for a writ of certiorari. 606 U. S. 916 (2025).

II

Before us, the parties dispute two questions. One is whether, by authorizing private lawsuits seeking "appropriate relief," RLUIPA ever permits suits for money damages—or whether the statute instead limits plaintiffs like Mr. Landor to other remedies, like injunctions or declaratory judgments. Brief for Petitioner 2–3, 18–19; Brief for Respondents 4. The other question the parties spar over is whether, consistent with the Constitution, a plaintiff may bring an RLUIPA suit against individuals, like the officers in this case, who have not formed any agreement with the federal government. Brief for Petitioner 38–46; Brief for Respondents 28–30, 45–46. To resolve this case, we need answer only the second question.[1]

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Article I of the Constitution grants Congress certain limited and enumerated powers. Congress, for example, may "regulate Commerce . . . among the several States." Art. I,

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[1] The dissent says we give "short shrift" to the principle that constitutional questions are to be avoided "'if there is some other ground upon which to dispose of the case.'" *Post*, at 83 (opinion of JACKSON, J.) (quoting *Bond* v. *United States*, 572 U. S. 844, 855 (2014)). But this is a "prudential rule," *Zobrest* v. *Catalina Foothills School Dist.*, 509 U. S. 1, 8 (1993), not a "mechanica[l]" one, *Almendarez-Torres* v. *United States*, 523 U. S. 224, 239 (1998). And for reasons we outline, the constitutional question here is readily resolved by our precedents. It is also narrower than the statutory question in an important respect: It does not require us to address whether RLUIPA *ever* authorizes money damages.

§ 8, cl. 3. It may "establish [a] uniform Rule of Naturalization, and uniform Laws on the subject of Bankruptcies." Cl. 4. It may "coin Money" and "provide for the Punishment of counterfeiting." Cls. 5–6. These provisions and others allow Congress to regulate the behavior of the American people in specific fields. And each allows Congress to back up its regulations "with a sanction" enforced either "by the COERTION of the magistracy, or by the COERTION of arms." The Federalist No. 15, p. 95 (J. Cooke ed. 1961) (A. Hamilton). So, for example, federal statutes require airlines operating in interstate commerce to hold certificates and comply with federal requirements. See 49 U. S. C. §§ 41101, 41102, 41109. The Bankruptcy Code allows a court to alter a creditor's rights and a debtor's responsibilities. See Title 11. And Title 18, Chapter 25, criminalizes counterfeiting. See, *e. g.*, 18 U. S. C. § 473. Each of these regulations finds its footing in a provision of Article I that empowers Congress to do just that: regulate.

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The terms of RLUIPA before us rest on a different foundation. As the parties agree, Congress enacted them pursuant to what is sometimes called the Constitution's Spending Clause. See *Sossamon* v. *Texas*, 563 U. S. 277, 290 (2011); Brief for Petitioner 3; Brief for Respondents 2. That provision of Article I gives Congress the "Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States." Art. I, § 8, cl. 1. At the founding, some argued this language conferred on Congress the power to regulate on nearly any topic it wishes, backed by practically any sanction it chooses, so long as it does so in service of the "general Welfare." See *Medina*, 606 U. S., at 370. It appears that Gouverneur Morris, a leading advocate of this reading and a member of the Committee on Style, even tried to replace one of the draft Clause's commas with a semicolon with the hope of making his reading more plausible. See W. Treanor, The Case of the Dishonest Scrivener: Gouverneur

Morris and the Creation of the Federalist Constitution, 120 Mich. L. Rev. 1, 20–24 (2021). But a careful proofreader—Roger Sherman—noticed the surreptitious edit, and the Convention rejected it. See *ibid.*

In the end, the founding generation rejected Morris's reading of the Clause just as it had his semicolon. See *Medina*, 606 U. S., at 370–371. While the Clause may allow Congress to raise and spend money in support of the "general Welfare," early authorities concluded, it did not "endow Congress with [any] power to regulate conduct." *Ibid.* (internal quotation marks omitted). Were it otherwise, they recognized, "the 'enumeration of specific powers' elsewhere in Article I would be rendered largely pointless, and the Nation would trade a limited federal government for 'an unlimited' one." *Id.*, at 371 (quoting 2 J. Story, Commentaries on the Constitution of the United States §§ 904, 906, pp. 367, 369 (1833)). This Court's precedents have long respected that founding-era consensus. See *Medina*, 606 U. S., at 371; accord, *Cummings* v. *Premier Rehab Keller*, 596 U. S. 212, 219 (2022).

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It is an understanding that gives rise to important limitations on spending legislation. Often, Congress attaches conditions to the funds it distributes. And typically, if a recipient "violates those conditions," Congress may "terminate" its agreement to provide funds. *Medina*, 606 U. S., at 365–366 (internal quotation marks omitted). But because the Spending Clause confers no authority to "regulate directly," *Dole*, 483 U. S., at 209, Congress cannot just dictate whatever other sanctions it might wish for violating conditions found in its Spending Clause legislation.

Instead, additional sanctions are permissible only with the "voluntar[y] and knowin[g]" consent of those who must bear them. *Pennhurst State School and Hospital* v. *Halderman*, 451 U. S. 1, 17 (1981). Put simply, without independent regulatory authority, Congress must rely on consent. It must ask and others must agree to face liability should they vio-

late a funding condition. Time and time again, from at least 1845 to the present, our precedents have stressed the centrality of consent in this field. Compare *Searight* v. *Stokes*, 3 How. 151, 169 (1845) (calling spending legislation a "compact . . . to which the state assented"), with *Medina*, 606 U. S., at 372 (describing spending statutes as "federal-state agreements").[2]

To sort out whether consent exists—and thus whether a condition associated with spending legislation is enforceable—we have traditionally turned to contract principles for guidance. See *Sossamon*, 563 U. S., at 290 (The contract analogy represents "a . . . limitation on" the "liability" Spending Clause statutes may impose (emphasis deleted)). Consider some examples. At common law, coerced assent to a contract is invalid. See Restatement (Second) of Contracts § 175(1) (1979). Likewise, we have held, coerced assent to a spending condition—by way of an economic "gun to

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[2] See also, *e. g.*, *Neil, Moore & Co.* v. *Ohio*, 3 How. 720, 742 (1845) (calling spending legislation "an agreement . . . between the United States and a state"); *McGee* v. *Mathis*, 4 Wall. 143, 155 (1866) ("It is not doubted that the grant by the United States to the State upon conditions, and the acceptance of the grant by the State, constituted a contract" founded on "consent of minds"); *Steward Machine Co.* v. *Davis*, 301 U. S. 548, 597–598 (1937) (Spending legislation is an "agreemen[t] . . . with Congress"); *Pennhurst*, 451 U. S., at 17 ("[L]egislation enacted pursuant to the spending power is much in the nature of a contract: in return for federal funds, the States agree to comply with federally imposed conditions"); *Gebser* v. *Lago Vista Independent School Dist.*, 524 U. S. 274, 287 (1998) (discussing the "contractual nature" of Title IX); *Barnes* v. *Gorman*, 536 U. S. 181, 186 (2002) ("We have repeatedly characterized . . . Spending Clause legislation as much in the nature of a *contract*" (internal quotation marks omitted)); *National Federation of Independent Business* v. *Sebelius*, 567 U. S. 519, 577 (2012) (opinion of ROBERTS, C. J.) ("The legitimacy of Congress's exercise of the spending power . . . rests on whether the State voluntarily and knowingly accepts the terms of the contract" (internal quotation marks omitted)); *Cummings* v. *Premier Rehab Keller*, 596 U. S. 212, 219 (2022) ("Spending Clause legislation operates based on consent: in return for federal funds, the recipients agree to comply with federally imposed conditions" (internal quotation marks and alteration omitted)).

the head"—is invalid. *National Federation of Independent Business* v. *Sebelius*, 567 U. S. 519, 581–582 (2012) (opinion of ROBERTS, C. J.); see also *id.*, at 676–677 (joint dissent of Scalia, Kennedy, THOMAS, and ALITO, JJ.); *Dole*, 483 U. S., at 211. At common law, ambiguous contractual language is construed against its drafter. See *C & L Enterprises, Inc.* v. *Citizen Band Potawatomi Tribe of Okla.*, 532 U. S. 411, 423 (2001). Similarly, we have concluded, Congress must clearly and unambiguously alert a grant recipient to any condition on federal funds. *Pennhurst*, 451 U. S., at 17. In these ways and others, our "contract analogy" helps safeguard against conflating Congress's spending power with a regulatory power. It does so by ensuring that conditions attached to federal funds—including those prescribing exposure to potential sanctions—apply only to those who have knowingly and voluntarily agreed to them. See *Cummings*, 596 U. S., at 220; cf. *Medina*, 606 U. S., at 371–372 (noting that an analogy to treaties, another consensual instrument, may also be appropriate).[3]

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These settled principles resolve this case. Before us, LDOC does not dispute that it is a recipient of federal funds. It does not question that it has agreed to answer certain RLUIPA suits as a condition of accepting those funds. But as it comes to us, this case does not involve claims against LDOC. It involves only claims against individuals in their personal capacities. And Mr. Landor does not allege that

[3] The contract analogy operates "only as a potential *limitation* on liability," *Cummings*, 596 U. S., at 225 (internal quotation marks omitted), meaning that consent is a necessary but not sufficient condition for constitutionality. As we have explained, "the exercise of the spending power must [also] be in pursuit of the general welfare," spending conditions must be "german[e] . . . to federal purposes," and still "other constitutional provisions may provide an independent bar." *Dole*, 483 U. S., at 207–208 (internal quotation marks omitted). A spending agreement that violates one of these requirements is invalid, just like "an illegal contract" at common law is invalid, even if freely assented to. *Kaiser Steel Corp.* v. *Mullins*, 455 U. S. 72, 77 (1982) (internal quotation marks omitted).

any of those individuals has entered any agreement with the federal government, let alone that any of them has voluntarily and knowingly consented to answer private suits under RLUIPA.

To know that is enough to know the Court of Appeals was correct. Mr. Landor does not have a federal RLUIPA cause of action against the officers. Under the Spending Clause, Congress lacks regulatory authority to impose liability on them directly and must depend instead on consent. And because they never agreed to answer suits like this one, Mr. Landor's case cannot proceed against them any more than a breach of contract action might proceed against a defendant who never formed a contract.

III

Seeking to avoid this conclusion, Mr. Landor and the dissent advance many arguments. But each is a variation on the same theme. In different ways, Mr. Landor and the dissent submit, the lack of voluntary and knowing consent does not matter. And each of their arguments fails for exactly that reason. Under the Spending Clause and our precedents, voluntary and knowing consent is key.

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A

Mr. Landor begins by invoking agency and contract law. As LDOC's agents, he contends, the individual defendants have a "duty to obey all reasonable directions" from their principal. Restatement (Second) of Agency § 385(1) (1957). And, he adds, an agent's actions can sometimes "bin[d] his principal" to a contract when he acts "within the scope of his authority." *United States* v. *Gooding*, 12 Wheat. 460, 469 (1827); see also Restatement (Second) of Agency § 140. From these common law principles, Mr. Landor reasons, it follows that the individual defendants in this case may be held personally liable under RLUIPA. Brief for Petitioner 31–33; see also *post*, at 92, 102, n. 10 (opinion of JACKSON, J.).

That much does not follow even from the precepts Mr. Landor cites. Certainly, an agent usually must obey his principal's directions and sometimes may bind his principal. But when a principal (here, LDOC) enters a contract with a third party (here, the federal government), as a matter of blackletter contract law the principal's agents do not become "liable" to the third party for their principal's "nonperformance." Restatement (Second) of Agency § 328 (boldface deleted); see also, *e. g.*, 12 R. Lord, Williston on Contracts § 35:34, p. 502 (4th ed. 2012) ("The agent cannot enforce the [principal's] contract, nor is the agent bound by it" (footnote omitted)); *Hodgson* v. *Dexter*, 1 Cranch 345, 363 (1803) (Marshall, C. J., for the Court) ("It is too clear to be controverted, that . . . contracts made on account of the government . . . are obligatory on the government; not the [government's] officer"). So, yes, LDOC might be subject to certain private suits under RLUIPA for breaching its promises to the federal government. But under normal principles of agency and contract law, that does not mean LDOC's employees are as well.

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To be sure, Mr. Landor and the dissent identify ways in which Congress *could have* lawfully imposed personal liability on the individual defendants. For example, Congress could have said that, as a condition of federal funding to LDOC, its officers had to agree to enter separate contracts with the federal government consenting to answer suits under RLUIPA. Or Congress might have conditioned its funds on Louisiana's agreement to exercise its own regulatory powers to adopt a state law cause of action enforceable against LDOC officers who violate RLUIPA. Brief for Petitioner 47; cf. *post*, at 101–102. But these untapped possibilities only underscore Mr. Landor's bind. The first hypothetical has what this case does not, namely, an agreement between the federal government and the defendants. And in the second hypothetical, again unlike this case, the State would have exercised its own regulatory powers. See *Randolph*

v. *Donaldson*, 9 Cranch 76, 84–85 (1815) (Story, J., for the Court) (describing a Virginia statute that did essentially that in response to a federal request).[4]

B

Next, Mr. Landor points to *Dole*. That case, he says, set out just four requirements for Spending Clause legislation—and consent is not among them. As he reads *Dole*, a condition on the grant of federal funds need only be "(1) in pursuit of the general welfare; (2) unambiguously expressed; (3) related to the federal interest in particular national projects or programs; and (4) not in violation of other constitutional provisions." Brief for Petitioner 33 (citing 483 U. S., at 207–208; internal quotation marks omitted). And because a condition requiring nonconsenting individuals to answer RLUIPA suits satisfies all these requirements, Mr. Landor concludes, his case may proceed. The dissent appears to agree, suggesting that the voluntary and knowing consent requirement finds no support in "any of *Dole*'s prongs." *Post*, at 91.

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That is incorrect. The four rules Mr. Landor extracts from *Dole* apply in addition to—not instead of—the rule that Congress may not use the Spending Clause to bind entities and individuals without their knowing and voluntary consent. That much is evident from *Dole* itself. As the dissent admits, *Dole* proceeds to add a fifth rule for Spending Clause legislation shortly after the passage Mr. Landor cites: Funding conditions may not "pass the point at which pressure turns into compulsion." 483 U. S., at 211 (internal quotation marks omitted); *post*, at 91. And that bar on compulsion, as we have seen, serves to help ensure real consent

[4] Nor, of course, does anything prevent Louisiana from acting on its own initiative to adopt a state law permitting damages in cases like this one. Indeed, counsel for the individual officers before us indicated that just such a claim may be available to Mr. Landor under state law in state court. Tr. of Oral Arg. 113–114.

exists. See Part II, *supra*. The same holds true of the clear-statement rule that *Dole* reaffirmed. Congress must impose spending conditions "unambiguously," not for no reason, but so that participants in federally funded programs may "exercise their choice knowingly, cognizant of the consequences of their participation." 483 U. S., at 207 (internal quotation marks omitted). Had *Dole* meant to bulldoze the consent requirement and condone consent-free regulation under the Spending Clause, *post*, at 93, it would have had no occasion to emphasize any of this. Nor does Mr. Landor's and the dissent's consent-free gloss on *Dole* merely overlook important qualifications in *Dole* itself. Worse still, their misreading would pit that decision against nearly two centuries' worth of cases recognizing the consent requirement, see n. 2, *supra*—hardly a sensible way to construe our precedents.

Responding to these problems, Mr. Landor and the dissent submit that RLUIPA's mere existence sufficed to alert the individual defendants, or at least their employer, that they could be held personally liable. See Brief for Petitioner 35; *post*, at 98–99. But, just like the attempt to rewrite *Dole*, this argument misses the point. A Spending Clause statute does not carry independent regulatory force. It assumes binding effect only through "voluntar[y] and knowin[g]" agreement. *Pennhurst*, 451 U. S., at 17. If someone has not agreed to be bound, it does not matter that he may be aware of the existence of a contract between other parties. And if someone has not agreed to be bound, it does not matter whether other contracting parties might wish to bind him. Either way, he has not agreed to be bound, so he cannot be.[5]

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[5] The dissent also attempts a factual analogy to *Dole*, suggesting that, because Congress "use[d] its spending power to regulate . . . drinking habits" there, it is free to regulate the individual officers' conduct here. *Post*, at 92–93. But this analogy fails for reasons we have seen. Under the spending legislation at issue in *Dole*, Congress conditioned federal highway funds on an agreement by the States to exercise their regulatory

C

Seeking still another way around the consent requirement, Mr. Landor turns next to the fungibility of money. The individual defendants, he observes, receive paychecks from LDOC, and some of that entity's funding comes from the federal government. As a result, Mr. Landor submits, the individual defendants are *indirect* recipients of federal funds and, for that reason, should be deemed to have *implicitly* consented to RLUIPA liability.

This submission fails as well. Mr. Landor would have us hold, for the first time, that so long as a penny of federal spending makes its way to an individual, however indirectly, Congress can regulate his conduct directly based on the fiction that he has consented to regulation. None of that is consistent with our precedents holding that funding conditions in Spending Clause legislation lack independent regulatory force but instead derive their effect from "voluntar[y] and knowin[g]" assent. *Pennhurst*, 451 U. S., at 17.

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Notice too where Mr. Landor's theory would lead. Given the "explo[sion]" of Spending Clause legislation in recent decades, *Medina*, 606 U. S., at 373, Congress would enjoy an effectively unbridled police power. Federal authorities would have no need to show that their regulations represent proper exercises of Congress's limited and enumerated powers found in the Commerce Clause, the Bankruptcy Clause, or any other. All they would have to show is that a recipient who consented to a funding condition spent some formerly federal money in transactions with a third party. Just like that, the federal government could directly regulate the third party's conduct. Take some examples. On Mr. Landor's theory, Congress could require coaches at universities that receive federal funds to permit transgender athletes to

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powers to raise their drinking ages to 21. See 483 U. S., at 205, 211. Congress did not purport to regulate "drinking habits" directly, let alone create a federal cause of action against underage drinkers.

play women's sports—or face personal liability in suits for damages. Likewise, Congress could bar doctors at medical practices that accept federal funds from administering certain vaccines to children—again on pain of damages. See Tr. of Oral Arg. 37–43. None of that fits with our system of limited and enumerated federal powers where all others are reserved to the States and the people.

The dissent criticizes us for "trot[ting] out" this "parade of horribles." *Post*, at 103. But if this is a parade, the dissent marches right along, embracing these hypotheticals and more. See *post*, at 103–104. In fact, as the dissent sees it, we should not engage in "hairsplitting" over any "strict direct-consent-to-liability . . . requirement" or "ill-formed" contract analogy. *Post*, at 95, 103–104. On its view, these things are all just "empt[y] . . . formalism[s]." *Post*, at 103. If Congress can ask individuals to consent to funding conditions—or ask States to enact laws in order to receive federal funds—Congress might as well be allowed to regulate private behavior directly. *Post*, at 102–103. Likely enough, that vision would have delighted Gouverneur Morris. But it is one at war with the terms of the Spending Clause, how that Clause has been widely understood since the founding, and a long line of this Court's precedents. Nor is there anything "empty" about insisting that Congress operate within the limited and enumerated powers the Constitution provides. This Court has rejected views like the dissent's many times before. See Part II, *supra*. And we do so again today.

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Faced with that problem, Mr. Landor and the dissent search for some foothold in our precedents to support their view that the Spending Clause grants Congress direct regulatory authority. Perhaps the best they can muster is a line snipped from *Rust* v. *Sullivan*, 500 U. S. 173 (1991), where we said that an individual employed in a federally funded program must "perform [his] duties in accordance with the . . . restrictions" specified by Congress. *Id.*, at 198; Brief for Petitioner 32; *post*, at 102–103. But even that is of no help. *Rust*

did not involve an attempt to impose personal liability on the program's employees. The only consequence for violating Congress's funding conditions fell on the federal funding recipient itself and amounted to no more than a loss of funding. See 500 U. S., at 178–179. And that is exactly the "typical remedy" for noncompliance our cases have long described. *Medina*, 606 U. S., at 373 (internal quotation marks omitted).

Mr. Landor and the dissent also point to *Grove City College* v. *Bell*, 465 U. S. 555 (1984), a Title IX case. Brief for Petitioner 32–33; *post*, at 94, n. 7. But there, too, the only penalty was the traditional one—the "terminati[on]" of federal funding. See *Grove City College*, 465 U. S., at 561. Subsequent events illustrate as much: After losing the case, the college decided "to exit the federal [funding] programs rather than surrender its autonomy," a choice it was free to make because Title IX binds only those who have freely elected to accept federal funds. Grove City College, Forty Years Ago, Supreme Court Case Changed GCC Forever (Feb. 26, 2024) (archived at https://perma.cc/2AQU-3PME). Pretty plainly, neither *Rust* nor *Grove City College* purported to reimagine the Spending Clause's terms or to rewrite our precedents construing them.[6]

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[6] The dissent also resorts to a supposed concession. Respondents, the dissent says, concede "'that Louisiana prison officials must comply with RLUIPA's substantive protections.'" *Post*, at 96 (quoting Brief for Respondents 46). But the dissent omits the rest of the sentence, which clarifies that respondents concede only the possibility of "injunctive relief" against them "*in their official capacities*" for RLUIPA violations. Brief for Respondents 46 (emphasis added). And, of course, an "official capacity" suit is "no different from a suit against the State itself." *Printz* v. *United States*, 521 U. S. 898, 931 (1997) (internal quotation marks omitted). Contrary to the dissent, respondents have clearly maintained all along that they cannot "be held *personally* liable for an alleged RLUIPA violation." Brief for Respondents 46. The dissent is also wrong to suggest that any LDOC official who might be sued in his official capacity can for that reason be sued in his personal capacity. See *post*, at 96–97. The whole point of an official-capacity suit is that it "is not a suit against the official

D

Finding our precedents under the Spending Clause unavailing, Mr. Landor and the dissent appeal to ones construing the Necessary and Proper Clause. In *Sabri* v. *United States*, 541 U. S. 600 (2004), we held that Congress's criminal ban on theft, fraud, or bribery against a federal funding recipient, 18 U. S. C. §666, is a necessary and proper incident to Congress's authority under the Spending Clause. See 541 U. S., at 605–606; see also *Salinas* v. *United States*, 522 U. S. 52, 60–61 (1997). Mr. Landor and the dissent contend this case is no different because personal liability for nonconsenting defendants is likewise a necessary and proper incident to RLUIPA's policy protecting religious exercises. Brief for Petitioner 36–39; *post*, at 93–99.

Much as the other arguments we have encountered misconceive the Spending Clause, this one misunderstands the Necessary and Proper Clause. The latter provision authorizes Congress to employ "necessary and proper" means for "carrying into Execution" its other enumerated powers. Art. I, §8, cl. 18. Put another way, the Clause allows Congress to enact laws "incidental to those powers which are expressly given." *McCulloch* v. *Maryland*, 4 Wheat. 316, 411 (1819). So the question is not, as Mr. Landor and the dissent would have it, whether a personal-capacity cause of action is incidental to RLUIPA's policy protecting religious exercises. The question, instead, is whether their proposed cause of action is a necessary and proper incident to Congress's constitutionally enumerated power to spend money.

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With the question correctly framed, the distinction between this case and *Sabri* becomes unmistakable. Section 666 addresses thieves, fraudsters, bribers, and others who threaten to "fritte[r] away in graft" the funds Congress distributes pursuant to the Spending Clause. 541 U. S., at

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but rather is a suit against the official's office." *Printz*, 521 U. S., at 930–931 (internal quotation marks omitted).

605. The thief steals allocated money; the fraudster extracts it under false pretenses; the briber obtains it by greasing palms. "Congress," *Sabri* held, "does not have to sit by and accept the risk" actors of that sort pose to its constitutionally enumerated spending power. *Ibid.* Instead, as a necessary and proper incident to that power, Congress may punish people who seek to sap federal funds from their intended beneficiaries. See *ibid.* And Congress may do so, *Sabri* concluded, even where not every misappropriated dollar may be "'traceabl[e]'" to "'specific federal payments.'" *United States* v. *Comstock*, 560 U. S. 126, 147 (2010) (quoting *Sabri*, 541 U. S., at 605–606).

Nothing similar can be said for the cause of action Mr. Landor and the dissent propose. Suits against nonconsenting parties, like the individual officers here, might advance RLUIPA's laudable policy of protecting religious exercises. But they do not safeguard from graft the federal funds Congress distributes pursuant to its spending power. Recognizing as much, seemingly every Court of Appeals to address the question has concluded that *Sabri* does not begin to command the result Mr. Landor and the dissent seek. See *Tripathy* v. *McKoy*, 103 F. 4th 106, 115 (CA2 2024) ("*Sabri* is easily distinguishable"); *Sharp* v. *Johnson*, 669 F. 3d 144, 155, n. 15 (CA3 2012) ("*Sabri* is inapposite"); *Haight* v. *Thompson*, 763 F. 3d 554, 570 (CA6 2014) ("RLUIPA is nothing like the *Sabri* statute"); *Barnett* v. *Short*, 129 F. 4th 534, 543 (CA8 2025) (*Sabri* "is too dissimilar"); *Wood* v. *Yordy*, 753 F. 3d 899, 903 (CA9 2014) (reliance on *Sabri* is "not . . . sensible").

Nor, with *Sabri* out of the picture, can Mr. Landor and the dissent explain how their proposed cause of action would help "carr[y] into execution" Congress's enumerated power to spend money. *McCulloch*, 4 Wheat., at 434. In truth, they don't even try. Instead, they suggest, the Necessary and Proper Clause ought to be elastic enough to allow the "extraction of money damages" from virtually anyone who violates virtually any condition found in Spending Clause

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legislation. *Post*, at 95–99, 102–103. But while the Necessary and Proper Clause may allow Congress to enact provisions actually incidental to its spending power, like those protecting federal money against graft, it does not tolerate outcomes that would "undermine the structure of [the federal] government established by the Constitution." *Sebelius*, 567 U. S., at 559 (opinion of ROBERTS, C. J.). Nor does the Clause tolerate results that would "violat[e] the principle of state sovereignty." *Printz* v. *United States*, 521 U. S. 898, 924 (1997). And adopting the expansive approach Mr. Landor and the dissent propose would require us to violate both rules.

Just consider what they would have us say. On their view, Congress may evade the consent requirement inherent in its Spending Clause authority simply by invoking the Necessary and Proper Clause. *Post*, at 95–99. With even a modest federal expenditure somewhere nearby, Congress could then proceed to regulate directly the conduct of countless nonconsenting individuals—not just the individual officers here, but also others like the coaches and physicians we discussed above. See Part III–C, *supra*. Congress could regulate directly, too, in innumerable spheres, including ones traditionally reserved to the States. Really, under Mr. Landor's and the dissent's logic, we would be "hard pressed to posit any activity . . . that Congress [would be] without power to regulate." *United States* v. *Lopez*, 514 U. S. 549, 564 (1995). And as inconsistent as all that is with both principles of state sovereignty and a federal government of limited and enumerated regulatory powers, it hardly represents a "*proper* means for carrying into [e]xecution" Congress's spending power. *Sebelius*, 567 U. S., at 559 (opinion of ROBERTS, C. J.) (internal quotation marks and some alterations omitted).

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Under the Spending Clause, Congress's power to spend money does not include the power to regulate. Spending

Clause statutes can bind only those who voluntarily and knowingly undertake obligations by agreement with the federal government. Because that essential element is missing here, we affirm the judgment of the Fifth Circuit.

It is so ordered.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR and JUSTICE KAGAN join, dissenting.

Congress enacted the Religious Land Use and Institutionalized Persons Act of 2000 (RLUIPA) to ensure that state and local prisons respect prisoners' right to religious exercise. Congress might have opted to accomplish this through contracts with the prisons it funds. Instead, it passed a law.

RLUIPA requires state and local prisons that accept federal funding to accommodate prisoners' religious exercise more generously than the Constitution mandates. Like many, this law comes with an enforcement mechanism: To ensure compliance, RLUIPA authorizes an impacted prisoner to sue any prison employee who violates the statute. Such suits, the statute provides, may proceed against the employee in the employee's individual capacity and may yield "appropriate relief." 42 U. S. C. §§ 2000cc–2(a), 2000cc–5(4)(A).

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Neither respondents nor the Court contests Congress's power to impose RLUIPA's substantive directive accommodating religious freedom. The majority nevertheless adopts the peculiar position that Congress is powerless to create, and a State is powerless to accept, the natural next step: a damages remedy against officials who violate that directive.

This severance of rights and remedies is a sleight of hand; it comes by way of the majority's full-throated endorsement of a contract analogy even though what secures the rights at issue is not a contract but a law. Today's decision magically transforms a federal statute into an invitation to be accepted or declined, deemed binding only if each particular defendant has explicitly agreed to be penalized. No matter that laws,